

Stereo. HCJDA 38.
Judgment Sheet
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

....

W.P. No.45999/2019.

Mumtaz Hussain

Versus

Addl. District Judge, etc.

JUDGMENT

Date of hearing: **21.09.2021.**

Petitioner by: Sh. Waqas Javed, Advocate.

Respondents by: Sh. Mumtaz Ali, Advocate for
respondent No.4.

Kh. Rehan Ahmad, Advocate for
respondents No.5 to 8.

ASIM HAFEEZ, J. This constitutional petition is directed against order dated 29.06.2019, whereby learned revisional court dismissed petitioner's revision and maintained order of 06.05.2019, in terms whereof learned Senior Civil Judge, (Family Division), Bhakkar dismissed petitioner's application for seeking revocation / cancellation of succession certificate dated 09.03.2019, issued in favour of respondent No.4 – widow of deceased Ghulam Mustafa.

2. Bare minimum facts, essential for determination of the lis at hands, are that respondent No.4 – claimed to be widow of deceased Ghulam Mustafa – sought succession certificate with respect to certain amounts, fell due to the deceased being service benefits – comprising of pension, death gratuity, insurance, monthly salary and

other service claims – and certificate was issued on 19.03.2019, in wake of decision of 09.03.2019. Petitioner claimed entitlement to the service benefits, claiming that said benefits are construable as compensation / grant; not forming part of the estate of deceased as *Tarka / heritable*, and payable to the petitioner, being nominee of the deceased – in terms of nomination form of 12.02.2014, submitted by the deceased with Habib Bank Limited, at the time of gaining employment. In lieu of such entitlement, petitioner filed application for revocation / cancellation of succession certificate, which was dismissed and said dismissal was maintained by the revisional court.

3. Learned counsel for petitioner contends that courts failed to appreciate nature of the claims – comprising of Group Insurance, Provident and Benevolent Fund, being service benefits and not heritable. Further submits that in the wake of nomination of the petitioner, maternal nephew of the deceased, there was no occasion to issue succession certificate to respondent No.4. He referred to various judgments to support arguments, which are reported as *Federation of Pakistan V. Public-at-Large* (PLD 1991 SC 731), *Muhammad Javed and another V. Mst. Roshan Jahan and 2 others* (PLD 2019 Sindh 1), *Erum V. Mst. Aameena and 5 others* (PLD 2015 Sindh 360), *Liaquat Ali V. Mst. Huma Faiz and another* (PLD 2018 Sindh 251), *Mst. Rabia Qavi and others v. Mst. Hina Qavi Khan and others* (PLD 2020 Sindh 263) *Mst. Nargis Yasmeen V. Mst. Ismat Khatoon and 7 others* [2021 PLC (C.S) 377], *Shabaz Wali Jhan and others V. Government of Pakistan, Establishment*

Division Regional Board Federal Employees [2019 PLC (C.S) 1467] and Sher Ali V. Director-General Pakistan Rangers and others (PLD 2019 Lahore 474).

3. Conversely, learned counsel appearing for respondent No.4 submits that nomination form has no legal sanctity nor same is enforceable in wake of right of respondent No.2 being the widow of deceased. Submits that nomination form, if believed to be true, was dated prior to the marriage of deceased with respondent No.4 hence, no effect can be given thereto, if its genuineness is otherwise proved. He referred to correspondence with Bank, showing that no rules and regulations are available, extending any preference to the alleged nominee, to the prejudice of respondent No.4. Submits that even otherwise, the question of alleged rights claimed – by the petitioner being an alleged nominee and respondents No. 5 to 6, claiming to alleged legal heirs of deceased – could not be determined by the court granting / issuing succession certificate. Reference is made to the case of Sofia Ashfaq V. Haseeb Ashfaq Bhatti and others (PLD 2019 Islamabad 238). Learned counsel also referred to the Punjab Civil Services Pension Rules to reiterate right of respondent No.4 to claim the amounts in lieu of service benefits. Learned counsel refers to the cases of Zaheer Abbas V. Pir Asif and 6 others (2011 CLC 1528) and Aziz Ahmed V. Hakimzadi and 7 others (2013 CLC 406).

4. Learned counsel appearing for respondents No.5 to 8 submits that said respondents are also legal heirs of the deceased and are entitled to share in the estate of deceased, but their identity was not

disclosed by respondent No.4 at the time of securing succession certificate. When confronted, learned counsel appearing for respondents No.5 to 8, conceded that only an application for revocation of succession certificate was filed, however, no suit for declaration was filed to seek a declaration regarding their rights.

5. Arguments heard. Record perused.

6. Record depicts that petitioner is claiming alleged exclusive entitlement qua service benefits of the deceased, being deceased's nominee / adopted son, and simultaneously a declaration that amounts claimable are not classifiable as estate of the deceased - part of *Tarka* – hence, not heritable. Petitioner also claims alleged concealment on the part of the respondent No.4 about identity of other legal heirs of the deceased – respondents No.5 to 8 – in the application filed for seeking certificate.

7. Petitioner claimed amounts with respect to group insurance, provident and benevolent funds, in terms of alleged nomination form. As far as classification of said amounts is concerned, in the light of judicial pronouncements cited, it is settled, unequivocally, that said claims are grants / compensation - being service benefits not claimable by the employee during his lifetime and only matures after his / her death - hence, same do not form part of '*Tarka*' and not heritable. It is evident that respondent No.4 had claimed certain amounts, which inter alia included payable salary at the time of death of the deceased – which claim, singly, can be termed as heritable.

8. Classification / character of the claims is not the real issue. The elemental question is determination of alleged rights exclusively claimed by the petitioner, in the capacity of being an alleged nominee / adopted son of deceased -which needs determination in the context of alleged legal status-cum-entitlement of alleged nominee and the claim of respondent No.4 – being admittedly married to the deceased, after the date of alleged nomination - in whose favour succession certificate was issued by the court while conducting summary determination, in terms of Successions Act 1925. When confronted, learned counsel for petitioner failed to refer to available rules or regulations of HBL, which could be resorted to for determination of the status of alleged nominee and entitlement claimed. It is further apparent from the order of the revisional court, which procured report from the manager of the concerned branch of the bank, which was submitted and relevant text thereof was quoted in the revisional court's order, portion whereof reads as, that 'in case of any dispute arose between the parties then bank would always request the parties to seek the court order and disburse the dues amount to the legal heirs according to the succession certificate issued by the competent court of law.

[Emphasis supplied]

9. Litigation Manager HBL appeared in court and reiterated same position. In the absence of any available rules on the subject – even if there are any rules to this effect same can be invoked subject to the proof of nomination, circumstances of a particular case

determination of question of legal enforcement thereof – status of the alleged nominee must be determined in the context of the dicta laid in numerous judicial pronouncements. In the context of instant case, it may be pertinent to point that alleged nomination is not admitted by the respondent No.4.

10. There is no cavil that status of the nominee and legality of purported claim raised, by said nominee, in the context of competing interests with the legal heirs, if so involved, is always held unenforceable – being subservient to the dictates of Law of Succession. See Mst. Amtul Habib and others V. Mst. Musarrat Parveen and others (PLD 1974 Supreme Court 185) and Malik Safdar Ali Khan and another V. Public-At-Large and others (2004 SCMR 1219). However, the case at hands relates to the claims, substantially not classifiable as Tarka – not heritable.

11. Petitioner has raised claim against certain amounts – bulk of which are not heritable, except outstanding salary of the deceased for the work done before demise – in the capacity of alleged nominee and simultaneously complain about alleged non-disclosure of details of all legal heirs of the deceased, by respondent No.4 in the application for seeking succession certificate – showing commonness with the alleged cause / claim of respondents No.5 to 8. The submissions are incompatible.

In view of the aforesaid, two mutually exclusive issues arise for determination, firstly regarding legality, genuineness, and

enforceability of claim in terms of alleged nomination form, raised by the petitioner being alleged nominee, adopted son of the deceased and on account of deceased's love and affection for petitioner – regarding claims not heritable [not forming part of *Tarka*] - and secondly, alleged claim of legal heirs – in the context of the claim classifiable as heritable [payable salary]. Both these issues, for the purposes of legal determination, are construable as intricate issues, requiring determination by the competent court, enjoying general / plenary jurisdiction, upon filing of a suit. Notwithstanding, accrual of intricate questions / issues in the proceedings pending in terms of Succession Act 1925, a certificate can still be issued in terms of sub-section (3) of Section 373 of the Act, upon achieving prima facie satisfaction qua successor and after securing security, as condition precedent for rendering accounts and extending protection to the potential claimants – whose rights would be determined and declared through judicial pronouncement. To this extent no illegality or irregularity could be attributed to the succession certificate dated 19.03.2019.

12. The courts below have rightly dismissed application of the petitioner for seeking revocation of the succession certificate, on the ground that the alleged rights claimed by the petitioner could not be settled / determined in the proceedings under the Succession Act, 1925, and remedy lies before the court exercising general jurisdiction. In view of aforesaid, I do not find any reason to differ with the judgments of the courts below and not persuaded to issue

the declaration sought qua alleged rights claimed by alleged nominee and alleged legal heirs – it is significant to note that neither petitioner nor respondents No.5 to 8 have had filed civil suit. Reference is made to the case of Mst. Samina Sikandar v. Public at Large (PLD 2011 Lahore 192), which was referred to and relied upon in the case of SOFIA ASHFAQ v. HASEEB ASHFAQ BHATTI and Others (PLD 2019 Islamabad 238), wherein scope and breadth of summary proceedings and legal status of succession certificate, was elaborated.

13. In view of the above, judgments impugned are affirmed and this petition is **dismissed** being devoid of merits. No order as to the costs.

(ASIM HAFEEZ)
JUDGE

Announced in open Court on this 3rd day of December 2021.

(ASIM HAFEEZ)
JUDGE

Imran/*

Approved for reporting.